

**IN THE DELHI STATE CONSUMER DISPUTES
REDRESSAL COMMISSION**

Date of Institution: 16.02.2018

Date of hearing: 06.08.2026

Date of Decision: 10.08.2026

FIRST APPEAL NO.74/2018

IN THE MATTER OF

MR. JAGDISH SINGH CHAUHAN

R/O A-402, SECTOR 10/33,
DWARKA, DELHI-110075

...APPELLANT
(in person)

VERSUS

IDEA CELLULAR LTD.

CORPORATE OFFICE:
1005-1006, KAILASH BUILDING,
26, K.G. MARG, NEW DELHI

...RESPONDENT
(Through Mr. Yubaraj Chatterjee, Advocate)

CORAM:

HON'BLE JUSTICE SANGITA DHINGRA SEHGAL (PRESIDENT)

HON'BLE MS. BIMLA KUMARI, MEMBER (FEMALE)

Present: Appellant in person appeared through VC.
Mr. Yubaraj Chatterjee, counsel for the respondent.

PER : HON'BLE MS. BIMLA KUMARI, MEMBER (FEMALE)

JUDGMENT

1. By this judgment, we shall dispose of the present appeal filed by the appellant impugning the order dated 30.11.2017 passed by the District Consumer Disputes Redressal Forum, New Delhi District, M-Block, Vikas Bhawan, I.P. Estate, New Delhi-110002 (the District Forum herein) in Consumer Complaint bearing no. 323/2016 titled as "*Jagdish Singh Chauhan Vs Idea Cellular Limited*".
2. The facts of the case as per the District Commission record are as under:

The complainant was a prepaid user of Idea Mobile bearing NO. 9990983853. He used to pay for full talk time in advance for making calls and sending SMS and he never opted for use of any services and had not consented OP for deducting amount from his prepaid deposit account for any other services except for making calls and sending SMS. It is alleged by the complainant that on 29.07.2010 at 16.25 p.m. he received the SMS IZ-55456 saying that your subscription to IDEA VOICE CHAT MONTHLY is renewed @ Rs. 30 for one month. He asked OP as to how and why the alleged service was activated and the payment was also deducted without his consent then OP assured that dispute would be resolved soon. It is alleged by the complainant that despite assurance, OP again charged Rs. 30/- against IDEA VOICE CHAT MONTHLY. It is further alleged by the complainant that despite assurance when the OP again deducted the amount from his prepaid account, he sent an email dt. 2/09/2010 and asked the OP to deposit the

deducted amount in prepaid recharging account with admissible interest on or before 0.09.2010 failing which treat it a notice u/s 80 CPC. In its reply to the email, OP assured the complainant that the said services have been deactivated as per request, but denied to refund the amount deducted. It is alleged by the complainant that he sent legal notice dated 18.09.2010 to OP, asking it to give the reason as to why the above Idea Monthly chat was activated without his consent and whether the chat services are used by him, and requested the OP to redeposit the deducted amount with admissible interest on or before 23.09.2010. It is further alleged by the complainant that vide notice dated 03.10.10, he intimated the OP that instead of refunding the previous amount by it further amount was deducted from his prepaid account on account of Idea voice Chat, despite giving assurance by it regarding the deactivation of the services with effect from 02.09.2010. It is alleged by the complainant that till the deactivation request was considered, the staff and agent of the OP again renewed the so called services without his request and amount continued to be deducted from his prepaid account without his fault. This act of OP amounts to deficiency in services, hence, the complaint.

Complaint has been contested by OP. In its Written Statement, OP had taken the preliminary objection that the present dispute raised by complainant is with respect to billing issue as well as for the value added services, hence,

not maintainable before this Forum and prayed for the dismissal of the complaint.

The complainant has filed rejoinder affirming the content of complaint & denying all allegations & contentions of the OP. Both the parties have filed their respective evidence by way of affidavits and also the written arguments.

3. The District Commission after taking into consideration the material available on record passed the judgment dated **30.11.2017**, whereby it held as under:

"We have given due consideration to the material placed before us and the arguments of both the parties.

The entire issue involved in the complaint case is regarding non-deactivation of the Idea Voice Chat Services. The OP has relied upon the judgment dated 01/09/2009 of Hon'ble Supreme Court in the case of General Manager telecom V/s M. Krishan& another.

In General Manager, Telecom v. M. Krishnan , : 2009(4) R.C.R.(Civil) 8 : 2009(5) Recent Apex Judgments (R.A.J.) 500 : 2009(8) SCC 481 : 2010 AIR (SC) 90 relied upon by learned counsel for the OP the Hon'ble Supreme Court has held:

*"6-7. In our opinion when there is a special remedy provided in Section 7-B of the Indian Telegraph Act regarding disputes in respect of telephone bills, then the remedy under the Consumer Protection Act is by implication barred. Section 7-B of the Telegraph Act reads as under :-
"S. 7B Arbitration of Disputes :-*

(1) Except as otherwise expressly provided in this Act, if any dispute concerning any telegraph line, appliance or apparatus arises between the telegraph authority and the person or whose benefit the line, appliance or apparatus is, or has

been provided, the dispute shall be determined by arbitration and shall, for the purpose of such determination, be referred to an arbitrator appointed by the Central Government either specifically for the determination of that dispute or generally for the determination of disputes under this Section.

(2) The award of the arbitrator appointed under sub-section (1) shall be conclusive between the parties to the dispute and shall not be questioned in any Court."

Rule 413 of the Telegraph Rules provides that all services relating to telephone are subject to Telegraph Rules. A telephone connection can be disconnected by the Telegraph Authority for default of payment under Rule 443 of the Rules.

8. It is well settled that the special law overrides the general law. Hence, in our opinion the High Court was not correct in its approach.

9. In Chairman, Thiruvalluvar Transport Corporation v. Consumer Protection Council, (1995)2 SCC 479 it was held that the National Commission has no jurisdiction to adjudicate upon claims for compensation arising out of motor vehicles accidents. We agree with the view taken in the aforesaid judgment."

Section 4 of the Act gives exclusive privileged to the Central government in respect of Telegraphs, the power to grant licences within India. Section 3 (1AA) defines, in short, the word "Telegraph" as given below:

" telegraph" means any appliance, instrument, material or apparatus used or capable of use for transmission or reception of signs, signals, writing, images, and sounds or intelligence of anynature by wire, visual or other electro-magnetic emissions, Radio waves or Hertzian waves, galvanic, electric or magnetic means".

The complaint is made in respect of the Idea Voice Chat i.e. value added services which comes within the definition of Telegraph stated before.

The term "Telegraph Authority" as defined in Section 3 (6) mean the Director-General of Posts and Telegraphs, and includes any officer empowered by him to perform all or any of the functions of the Telegraph authority under this Act. Therefore, the word "Telegraph authority" includes the officers empowered by Director-General of post and Telegraph also. The "Telegraph officer" is defined in Section 3 (2) of the Act, and includes the person employed temporarily or permanently in connection with Telegraph established, maintained or worked by the Central government or by a person licensed under this Act. Therefore, by virtue of this definition of Telegraph officer a person employed permanently or temporarily with licensed person under the Act is also a Telegraph officer. So, by implication, the licensed service providers like the OP would come within the definition of "Telegraph authority" and the provisions of Section 7B of the Act are applicable between the disputes of said service provider and the person claiming deficiency in service against him, with regard to Telegraph lines or Telegraph, dues, etc.

M. Krishnan's case was followed in another case titled Jayaprakash, Panjeta versus Vodafone ESSAR South Ltd and another in the Revision Petition No. 2365/2011 decided by Hon'ble National Consumer Disputes Redressal Commission on 30/4/2014 and it was held that the judgment of Hon'ble Supreme Court was binding and the Revision Petition filed against the OP company was dismissed. In LokeshParashar versus M/S, Idea Cellular Ltd the Revision Petition number 3780 of 2011 decided by Hon'ble National Consumer Disputes Redressal Commission, New Delhi on 20/4/2012, the Hon'ble National Consumer Disputes Redressal Commission, while dismissing the revision petition, following M. Krishnan's case (supra), has also indicated that in another case of ParkashVerma versus Idea cellular Ltd and another the Revision Petition number 1703 of 2010 was dismissed by it on 21/5/2010 and the Special Leave Petition filed by the petitioner before the Apex Court was dismissed on 1/10/2010 by Hon'ble Supreme

Court. Therefore, M. Krishnan's case (supra), is consistently being followed by Hon'ble National Consumer Disputes Redressal Commission and we are bound to obey the directions and the observations in these cases and so are compelled to hold that the present complaint is hit by Section 7B of the Telegraph Act.

In view of the above, the complaint filed by the complainant against the OP is dismissed for want of jurisdiction of this Forum. One true copy each of this order be sent to the concerned parties by post.

This order be sent to server (www.confonet.nic.in).

The file be consigned to the Record Room."

4. Aggrieved by the aforesaid order of the District Commission, the appellant has preferred the present appeal *inter-alia* on the ground the impugned order passed by the District Commission is illegal and has been passed without going through the pleadings, material facts and law. The Ld. District Forum wrongly denied jurisdiction and misapplied the law relating to telecom disputes. The private telecom service providers are not "Telegraph Authority" under the Indian Telegraph Act, 1885. But the Ld. District Forum treated the respondent as "telegraph authority" and dismissed the complaint for lack of jurisdiction, which is unlawful and contrary to statutory provisions. The Consumer Protection Act, 1986 provides remedies in addition to other laws, and arbitration clause cannot override its jurisdiction. Judicial precedents affirm that consumer forums can adjudicate disputes even where arbitration clauses exist. But the Ld. District Forum ignored these legal principles and relevant judgments. The dispute concerns unauthorized deductions for value-added services (VAS) without obtaining prior explicit consent, in violation of TRAI

guidelines. The respondent failed to produce proof of consent, continued deductions despite objections and did not refund the amounts. Such conduct amounts to unfair trade practices, deficiency in service, and fraud, affecting a large number of consumers, especially vulnerable groups. There are procedural lapses on the part of the Ld. District Forum and misclassification of the dispute as a billing issue, as the appellant used to avail prepaid services involving no bills. The appellant has prayed for setting aside of the impugned order, restoration of the complaint, and appropriate compensation in the interest of justice.

5. Notice of appeal was issued to the respondent on 13.03.2018 by Ld. Predecessors, but respondent did not file reply to appeal despite various opportunities.

6. **Therefore, the right to file reply to appeal on behalf of the respondent was closed on 19.07.2024.**

7. The appellant has filed the written arguments on 28.08.2024 vide diary no. 11058.

8. The respondent did not file the written arguments despite various opportunities.

9. We have carefully and thoroughly perused the material available on record.

10. **The only question that arises for consideration is whether there is any material irregularity or illegality in the impugned order passed by the Ld. District Forum.**

11. It is worth noting that the Ld. District Forum dismissed the complaint for want of jurisdiction as the complaint was hit by Section 7B of the Indian Telegraph Act, 1885.
12. Further, the Ld. District Forum has relied upon the judgment of Hon'ble Supreme Court in *M. Krishnan's case*, which was consistently followed by the Hon'ble National Consumer Disputes Redressal Commission, in *Jayaprakash Panjeta v. Vodafone Essar South Ltd.*, Revision Petition No. 2365/2011 decided on 30.04.2014, *Lokesh Parashar v. Idea Cellular Ltd.* Revision Petition No. 3780/2011 decided on 20.04.2012, *Parkash Verma v. Idea Cellular Ltd.* Revision Petition No. 1703/2010, decided on 21.05.2010.
13. **It is significant to note that above-referred judgment of Hon'ble Supreme Court in *M. Krishnan's case* was overruled by Hon'ble Supreme Court in "Vodafone Idea Cellular Ltd. Vs Ajay Kumar Agarwal" Civil Appeal No. 923 of 2017 decided on 16.02.2022. The sole question before Hon'ble Supreme Court in that case was whether Section 7B of the Indian Telegraph Act, 1885 ousts the jurisdiction of Consumer Forum in deciding a dispute between a telecom company and a consumer.**
14. It is worth noting that Hon'ble Supreme Court in the above referred case has also dealt with the case of *M. Krishnan* and observed as under:

"18. We are unable to subscribe to the view which has been adopted in the above decision in M Krishnan (supra). The decision is incorrect on two grounds. First, it failed to recognize that the Act of 1986 is not a general law but a

special law that has been enacted by Parliament specifically to protect the interest of consumers. Second, even if it is assumed that the Act of 1986 is a general law, it is a settled position of law that if there is any inconsistency between two legislations, the later law, even if general in nature, would override an earlier special law. In Ajoy Kumar Banerjee v. Union of India¹⁴, a three-judge Bench of this Court observed:

“38...As mentioned hereinbefore if the Scheme was held to be valid, then the question what is the general law and what is the special law and which law in case of conflict would prevail would have arisen and that would have necessitated the application of the principle Generaliaspecialibus non derogant. The general rule to be followed in case of conflict between two statutes is that the later abrogates the earlier one. In other words, a prior special law would yield to a later general law, if either of the two following conditions is satisfied:

“(i) The two are inconsistent with each other.

(ii) There is some express reference in the later to the earlier enactment.”

If either of these two conditions is fulfilled, the later law, even though general, would prevail.

39. From the text and the decisions, four tests are deducible and these are: (i) The legislature has the undoubted right to alter a law already promulgated through subsequent legislation, (ii) A special law may be altered, abrogated or repealed by a later general law by an express provisions, (iii) A later general law will override a prior special law if the two are so repugnant to each other that they cannot co-exist even though no express provision in that behalf is found in the general

law, and (iv) It is only in the absence of a provision to the contrary and of a clear inconsistency that a special law will remain wholly unaffected by a later general law. See in this connection, Maxwell on the Interpretation of Statutes, Twelfth Edn., pp. 196-198.”

19. In any event, the decision in *M Krishnan (supra)* also fails to note that the Act of 1986 is a special law providing protection to consumers. **Crucially, M Krishnan (supra)** fails to notice that Section 3 of the Act of 1986 clearly provides that the remedies available under the Act are in addition to the remedies available in other statutes and the availability of additional remedies would not bar a consumer from filing a complaint under the Act of 1986. Section 100 of the Act of 2019 corresponds to Section 3 of the Act of 1986. **In Emaar MGF Land Ltd. (supra)**, this Court held that the complaint under the Act of 1986 is a special remedy provided to a consumer in addition to the remedies that can be availed of by them, including arbitration. **In Imperia Structures Ltd. v Anil Patni**, this Court held that the remedies available under the Act of 1986 are in addition to the remedies available under other statutes, including special statutes like the Real Estate (Regulation and Development) Act 2016. This Court reiterated the settled position of law in the following terms:

“23. It has consistently been held by this Court that the remedies available under the provisions of the CP Act are additional remedies over and above the other remedies including those made available under any special statutes; and that the availability of an alternate remedy is no bar in entertaining a complaint under the CP Act.”

20. The above position was reiterated in **IREO Grace Realtech (P) Ltd. v. Abhishek Khanna** by a three-judge Bench of this Court, of which one of us (Justice DY Chandrachud) was a part. Justice Indu Malhotra, speaking for the Bench invoked the doctrine of election, which provides that when two remedies are available for the same relief, the party at whose disposal such remedies are available, can make the choice to elect either of the remedies as long as the ambit and scope of the two remedies is not essentially different. These observations were made in the context of an allottee of an apartment having the choice of initiating proceedings under the Act of 1986 or the RERA. In the present case, the existence of an arbitral remedy will not, therefore, oust the jurisdiction of the consumer forum. It would be open to a consumer to opt for the remedy of arbitration, but there is no compulsion in law to do so and it would be open to a consumer to seek recourse to the remedies which are provided under the Act of 1986, now replaced by the Act of 2019. The insertion of the expression 'telecom services' in the definition which is contained in Section 2(42) of the Act of 2019 cannot, for the reasons which we have indicated be construed to mean that telecom services were excluded from the jurisdiction of the consumer forum under the Act of 1986. On the contrary, the definition of the expression 'service' in Section 2(o) of the Act of 1986 was wide enough to comprehend services of every description including telecom services.

21. For the above reasons, we affirm the judgment of the NCDRC which came to the conclusion that the District Forum has the jurisdiction to entertain and try the complaint."

15. Accordingly, the Civil Appeal No. 923/2017 filed by Vodafone Idea Cellular Ltd. against the judgment and order

dated 26.05.2026 of Hon'ble NCDRC was dismissed by Hon'ble Supreme Court.

16. Since Section 7B of the Indian Telegraph Act, 1885 cannot oust the jurisdiction of Consumer Forum, in view of above legal settled position discussed above, we are of the considered view that there is material irregularity and illegality in the impugned order dated 30.11.2017 passed by the Ld. District Consumer Disputes Redressal Forum, New Delhi District, M-Block, Vikas Bhawan, I.P. Estate, New Delhi-110002.
17. Consequently, the impugned order dated 30.11.2017 is hereby set aside and the appeal filed by the appellant is allowed.
18. The matter is remanded back to the Ld. District Consumer Disputes Redressal Forum, New Delhi District, M-Block, Vikas Bhawan, I.P. Estate, New Delhi-110002 with directions to restore the complaint and to decide the matter afresh on merits as expeditiously as possible, preferably within a period of six months from the date of this judgment, as the complaint was filed by the appellant in the year 2010.
19. In the facts and circumstances of the case, the parties shall bear their own costs.
20. Applications pending, if any, stand disposed of in terms of the aforesaid judgment.
21. A copy of this judgment be provided to all the parties free of cost as mandated by the Consumer Protection Act, 1986. The judgment be uploaded forthwith on the website of the commission for the perusal of the parties.

22. Appeal file be consigned to record room along with a copy of this Judgment.
23. Trial court record received, if any, be sent back along with copy of this Judgment.

(JUSTICE SANGITA DHINGRA SEHGAL)
PRESIDENT

(BIMLA KUMARI)
MEMBER (FEMALE)

Pronounced On :10.08.2026.